

Nelaturi Behara Bala Durga vs Nelaturi Naga Vijaya Babu on 3 November, 2025

APHC010380292024

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

MONDAY, THE THIRD DAY OF NOVEMBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 288/2024

Between:

1. NELATURI @ BEHARA BALA DURGA, W/O.NAGA VIJAYA BABU,
AGED ABOUT 30 YEARS, R/O. BRAHMAPURAM, MACHILIPATNAM,
KRISHNA DISTRICT.

...PETITIONER

AND

1. NELATURI NAGA VIJAYA BABU, , S/o. Mohan Babu, Aged about 35
years. Employe, R/o.D.No.44-16/5/1, Lakshmi Narayanapuram,
Kailasapuram, Now at Flat.No.Tf-3, CBR Royal Apartments, Sai
Nagar, Gopalapatnam, Visakhapatnam.

...RESPONDENT

Petition Under Section 24 of the C.P.C. Praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to Pleased to pass orders by withdrawing the Divorce O.P., in F.C.O.P.No. 158/2023 on the file of the Court of the Judge Family Court-cum-V Additional District Judge at Visakhapatnam and same may be transferred to the Court of the Principle Civil Judge (Senior Division), Machilipatnam, Krishna District and to pass

IA NO: 1 OF 2024

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased Pleased to grant stay of all further proceedings in F.C.O.P.No. 158/2023 on the file of the Court of the Judge Family Court-cum-V Additional District Judge at Visakhapatnam pending disposal of the Transfer Petition and pass

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased May be pleased to vacate the interim stay order dated 10-09-2024 passed in IA.No.1 of 2024 in Tr.CMP.No.288 of 2024, and pass

Counsel for the Petitioner:

1. NARASIMHA RAO GUDISEVA

Counsel for the Respondent:

1. Y SUBRAHMANYAM

THE HON'BLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLANEOUS PETITION No.288 of 2024

ORDER:

The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for short „the C.P.C.) seeking for withdrawal of F.C.O.P.No.158 of 2023 on the file of the Judge, Family Court-cum-V Additional District Judge, Visakhapatnam and transfer the same to the Court of Principal Senior Civil Judge, Machilipatnam, Krishna District, for trail and disposal of the same.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the wife of the respondent and the marriage of the petitioner with the respondent was solemnized on 26.02.2020, in the presence of both side elders and well-wishers at Visakhapatnam, as per the Hindu Rites and Caste Customs. During their wedlock, the petitioner/wife and the respondent/husband were begot a male child on 10.11.2020. After that, due to the matrimonial disputes, the petitioner/wife has been residing separately along with her child aged about 5 years in her parents house at Machilipatnam, Krishna District. The petitioner/wife further pleaded that in view of the harassment made by the respondent/husband, she lodged two (2) complaints against the respondent/husband and his family members before the Disha Police Station, Machilipatnam and Chilakalapudi Police Station respectively, which were registered as F.I.R.Nos.12 of 2023 & F.I.R.No.49 of 2023, for the offence punishable under Sections 498-A, 354-c, 509 & 506 r/w 34 of I.P.C. under Sections 3 & 4 of the Dowry Prohibition Act, 1961 & Section 307 r/w 34 of I.P.C, after completion of investigation, Police filed a charge sheet in both the complaints given by the petitioner/wife and the same was numbered as C.C.No.424 of 2023 on the file of the Special Judicial Magistrate of First Class (Prohibition & Excise) Court, Machilipatnam, the same is pending for adjudication and P.R.C.No.22 of 2023 and she also filed a Maintenance Case vide M.C.No.39 of 2023 on the file of the II Additional Judicial Magistrate of First Class, Machilipatnam, Krishna District and the aforesaid three (03) cases are pending for adjudication.

II. The petitioner/wife further pleaded that with a view to cause inconvenience to her, the respondent/husband had filed a divorce petition vide F.C.O.P.No.158 of 2023 on the file of the Judge, Family Court-cum-V Additional District Judge, Visakhapatnam, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

III. Learned counsel for the petitioner would further contend that the petitioner being a woman, has been residing separately along with her child aged about 5 years and depending upon the mercy of her parents at Machilipatnam and the distance between Machilipatnam and Visakhapatnam is more than 360Kms, it is very difficult for her to travel to attend the divorce case proceedings which was filed by the respondent/husband, before the Court at Visakhapatnam without any male assistance and that she was constrained to file the present petition against the respondent/husband, seeking for withdrawal of F.C.O.P.No.158 of 2023, on the file of the Judge, Family Court-cum-V Additional District Judge, Visakhapatnam and transfer the same to the Court of Principal Senior Civil Judge, Machilipatnam, Krishna District.

3. Learned counsel for the respondent would contend that respondent/husband herein is a Central Government employee, if in case this Court is inclined to transfer the said case i.e., F.C.O.P.No.158 of 2023, from Visakhapatnam to Machilipatnam Court, he will face much difficulty for obtaining leaves from the head of the department.

4. Heard learned counsel appearing on both sides on record.

5. Perused the material available on record.

6. The material on record prima facie goes to show that, due to the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately along with her child aged about 5 years in Machilipatnam and she filed (03) cases against the respondent/husband herein i.e., C.C.No.424 of 2023 on the file of the Special Judicial Magistrate of First Class (Prohibition & Excise) Court, Machilipatnam, P.R.C.No.22 of 2023 and Maintenance Case vide M.C.No.39 of 2023 on the file of the II Additional Judicial Magistrate of First Class, Machilipatnam, Krishna District, the aforesaid cases are pending for adjudication and the respondent/husband is also attending the Court proceedings before the competent Courts at Machilipatnam, Krishna District. The material on record further reveals that the respondent/husband filed a divorce petition against the petitioner/wife herein vide F.C.O.P.No.158 of 2023, on the file of the Judge, Family Court-cum-V Additional District Judge, Visakhapatnam, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

7. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA¹, held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

8. The Apex Court in a case of N.C.V. AISHWARYA VS A.S. SARAVANA KARTHIK SHA², held as follows:

"9. The cardinal principles for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it (2000) 10 SCC 304 2022 LiveLaw (SC) 627 is the wife's convenience which must be looked at while considering transfer."

9. On considering the submissions made by the learned counsel appearing for both sides and in view of the ratio laid down by the aforesaid case laws and on considering the facts and circumstances of the present case that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. In view of the matrimonial disputes between the spouses, the petitioner/wife has been residing separately along with her child aged about 5 years at Machilipatnam, therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife, seeking for withdrawal of F.C.O.P.No.158 of 2023, on the file of the Judge, Family Court-cum-V Additional District Judge, Visakhapatnam and transfer the same to the Court of Principal Senior Civil Judge, Machilipatnam, Krishna District. Further, on considering the submissions made by the learned counsel for the respondent that the respondent/husband herein is a Central Government employee, therefore, it is desirable to dispense with the personal appearance of the respondent/husband herein i.e., the petitioner in F.C.O.P.No.158 of 2023, on the file of the Judge, Family Court-cum- V Additional District Judge, Visakhapatnam, before the transferee Court, except on the days when his personal appearance is required before the said Court as per law.

10. In the result, the Transfer Civil Miscellaneous Petition is allowed and the F.C.O.P.No.158 of 2023, on the file of the Judge, Family Court-cum-V Additional District Judge, Visakhapatnam, is hereby withdrawn and transferred to the file of the Principal Senior Civil Judge, Machilipatnam, Krishna District. The learned Judge, Family Court-cum-V Additional District Judge, Visakhapatnam, shall transmit the case record in F.C.O.P.No.158 of 2023, to the file of the Principal Senior Civil Judge, Machilipatnam, Krishna District, duly indexed as expeditiously as possible preferably within a period of one (01) week from the date of receipt of a copy of the order. Both the parties are directed to appear before the Principal Senior Civil Judge, Machilipatnam, Krishna District, on 08.12.2025, at 10.30 a.m. The transferee Court i.e., learned Principal Senior Civil Judge, Machilipatnam, Krishna District, is hereby directed not to insist for the personal appearance of the respondent herein i.e., the petitioner in F.C.O.P.No.158 of 2023, as long as his counsel is attending the Court proceedings and representing the case except on the day when re-conciliation proceedings are being taken up or on the day when his cross-examination is required to be recorded or on any other day when his personal appearance is required as directed by the learned Principal Senior Civil Judge, Machilipatnam, Krishna District. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

03.11.2025 CVD JUSTICE V. GOPALA KRISHNA RAO Date: